

		(4/30/26 Order (ROA 138) No. 11) there is no clerk's office in the Civil Complex Center of the Orange County Superior Court. The final approval hearing is scheduled for <u>February 25, 2027 at 2:00 p.m.</u> in Department CX105. The motion for final approval shall be filed at least 16 court days before the hearing. See Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service.
10	Retana v. Bar Bakers, LLC 2019-01096563	<u>Plaintiffs' Motion for Approval of PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for approval of an \$1,000,000 PAGA settlement. Subject to plaintiffs' submission of the documents identified below, the court grants the motion as follows: \$300,000.00 for attorneys' fees (see 12/11/25 Order (ROA 314) No. 8); \$26,246.40 for attorneys' costs; \$11,980.00 for settlement administration fees (see No. 1 below); and \$661,773.60 total PAGA penalties (\$496,330.20 to LWDA). 1. The court deducted \$1,270 from the requested settlement administration fees of \$13,250 for (i) a duplicative \$750 language translation fee; (ii) an unexplained \$240 increase in "settlement calculations" charges (compare Supp. Carraher Decl. (ROA 365) Ex. 2 with Sutherland Decl. (Ex. 4 to ROA 307) Ex. B); and (iii) an unexplained \$280 increase in "account management and reconciliation" charges (compare Supp. Carraher Decl. (ROA 365) Ex. 2 with Sutherland Decl. (Ex. 4 to ROA 307) Ex. B). Plaintiffs are ordered to submit <u>by September 24, 2026</u> a revised proposed order and judgment (including the above amounts) with all exhibits attached (settlement agreement; amendment thereto; and notice letter (in English and Spanish)). The notice letter should be revised to state the above amounts. In addition, only one copy of the English-language version of the notice letter should be attached to the proposed order and judgment as an exhibit. The proposed order and judgment (ROA 369) submitted with the supplemental papers has two English-language copies of the notice letter attached as exhibits. The final accounting hearing is scheduled for <u>June 10, 2027 at 9:00 a.m.</u> in Department CX105. Plaintiffs shall submit a final administrator's report at least 9 court days before the hearing addressing the status of the settlement administration, including the status of defendants' settlement payments, the actual amounts

		paid to the aggrieved employees, and the other amounts distributed under the settlement, including any uncashed checks. Plaintiffs are ordered to give notice, including to the LWDA, and to file a proof of service.
11	Singh v. Dr. Smoothie Enterprises, LLC 2025-01495408	Off calendar.
12	People of State of California v. Jivalagian 2026-01543442	<u>Plaintiff People of the State of California’s Renewed Motion to Stay Civil Action Pending Resolution of Criminal Investigations and Actions</u> Plaintiff People of the State of California (People) move to stay this case for one year. The court denied the People’s virtually identical motion five months ago. 4/16/26 Order (ROA 59); <i>see also</i> 2/11/26 Order (ROA 29). The court assumes the parties’ familiarity with the April 16, 2026 order, and incorporates that order herein by this reference. For the following reasons, the People’s renewed motion to stay is denied. “A party who originally made an application for an order which was refused in whole or part, or granted conditionally or on terms, may make a subsequent application for the same order upon new or different facts, circumstances, or law, in which case it shall be shown by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown.” Civ. Proc. Code § 1008(b). Despite reproducing entire sections of the prior brief and declaration verbatim, the People do not acknowledge the prior motion or the court’s April 16, 2026 order, and have made no effort to comply with section 1008(b). Thus, as the instant motion again seeks an order staying this action, but the declaration filed with the motion does not state “what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown,” the motion is denied. That the People now seek an order staying the action for one year, and previously sought an order staying the action for an unspecified time period, does not render section 1008(b) inapplicable, as the order the People seek—an order staying the action—is the same. Even if section 1008(b) does not apply, however, the motion is still denied. The motion and its accompanying declaration have not remedied the deficiencies in the People’s showing identified in the court’s April 16, 2026 order. Neither the brief nor the Herzog Declaration addresses all of the issues identified in the order, and, as with the prior George Declaration, the portions of the Herzog declaration on which the People rely are nonspecific and conclusory (e.g., Herzog Decl. (ROA 69) ¶ 12). As to the <i>Keating</i> factor addressing case management and efficient use of judicial resources (which, of course, is only one of several factors considered in the